

Court No. - 21

Case :- WRIT - C No. - 11755 of 2023

Petitioner :- Ajay Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Sikandar Khan

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

The instant petition has been filed challenging the provisional assessment notice dated 30.10.2021 issued by respondent no.2 in a case of theft of electricity.

Learned counsel for the respondent-Electricity Department states that final assessment order has yet not been passed. He states that the respondent will pass order of final assessment only after considering the objection filed by the petitioner.

Accordingly, no case is made out to interfere at this stage.

The petition is **disposed of** with liberty to the respondents to pass order of final assessment strictly in accordance with procedure prescribed under the U.P. Electricity Supply Code, 2005.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 10.4.2023

Shivangi